

The Attorney General of California has prepared the following title and summary of the chief purpose and points of the proposed measure:

ALLOWS A PARTY TO CHOOSE TO HAVE A JURY TRIAL IN CHILD-CUSTODY

AND DEPENDENT-CHILD CASES. INITIATIVE STATUTE. Allows a party in child-

custody cases to choose that a jury, rather than a judge, determines who receives legal custody of

the child. Prohibits the judge from rejecting a jury's decision in child-custody cases. Allows a

party in dependent-child proceedings to choose that a jury, rather than a judge, determines

whether a child should be declared a dependent of the court. Summary of estimate by

Legislative Analyst and Director of Finance of fiscal impact on state and local governments:

Unknown ongoing net fiscal impact on state courts that would depend significantly on (1)

how the measure is interpreted and implemented by the courts and (2) how individuals

respond to the ability to demand a jury trial in child custody and juvenile dependency

jurisdictional hearings. Potential ongoing increase in county costs that could reach the low

millions of dollars annually related to juvenile dependency jurisdictional cases – some or all

of which could be shifted to the state. (21-0019.)